

180 days, regarding the status of arbitration completion, and give notice of such CMC to all parties.

11. 9:00 AM CASE NUMBER: MSL16-00896

CASE NAME: LOBEL FINANCIAL CORP VS. BREANNE WEST

***HEARING ON MOTION IN RE: VACATE DEFAULT AND DEFAULT JUDGMENT FILED BY: WEST, BREANNE**

FILED BY:

TENTATIVE RULING:

Defendant and Judgment Debtor Breanne West (“Defendant”) filed a Motion to Vacate Default and Default Judgment on August 15, 2025 (“Motion to Set Aside Default”). The Motion to Set Aside Default was initially set for hearing on November 17, 2025. The hearing was later continued to December 16, 2025. The motion is opposed.

Background

Plaintiff and Judgment Lobel Financial Corp. (“Plaintiff”) filed a Complaint on March 21, 2016.

A Proof of Service of Summons was filed May 2, 2016 (the “5/2/16 POSS”). The 5/2/16 POSS reflects substitute service on Defendant on April 13, 2016 at an address of 1100 Howe Ave #132, Sacramento, California, by delivery to “Co-Occupant” D.J. Watts. 5/2/16 POSS, ¶¶3-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on June 2, 2017 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court and a default judgment was entered on July 6, 2017 (the “Default Judgment”).

Defendant’s motion is supported by the Declaration of Breanne West filed August 15, 2025 as part of the Motion to Set Aside Default (the “Supporting Declaration”).

Plaintiff filed an opposition to Defendant’s Motion to Set Aside Default on October 29, 2025, including an opposition Declaration of Dianne Cravens (“Opposition Declaration”).

Analysis

1. Lack of Actual Notice of the Pending Lawsuit.

Defendant seeks relief under Code of Civil Procedure section 473.5.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

The service was done by a registered process server. See 5/2/16 POSS at ¶7. This raises a

presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

The Court need not consider whether Defendant's Supporting Declaration proffers evidence to rebut the presumption of valid service because Defendant cannot, at this stage, obtain relief under Code of Civil Procedure section 473.5. Such relief is time barred.

There are certain deadlines for a defendant to bring a motion to set aside a default under Code of Civil Procedure section 473.5. See Code Civ. Proc. § 473.5(a) ("The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.").

However, it appears that longer time limits apply here. Civil Code section 1788.61 provides that "[n]otwithstanding Section 473.5 of the Code of Civil Procedure, if service of a summons has not resulted in actual notice to a person in time to defend an action brought by a debt buyer and a default or default judgment has been entered against the person in the action, the person may serve and file a notice of motion and motion to set aside the default or default judgment and for leave to defend the action." Civ. Code § 1788.61(a)(1). This statute contains longer outside time limits. See *id.* at § 1788.61(a)(2) [relief must be sought within a reasonable time, but in no event exceeding the earlier of: (a) six years after entry of the default or default judgment against the person or (b) one hundred eighty days of the first actual notice of the action]. These longer time periods only apply in cases involving a plaintiff "debt buyer."

A "Debt buyer" means a person or entity that is regularly engaged in the business of purchasing charged-off consumer debt for collection purposes, whether it collects the debt itself, hires a third party for collection, or hires an attorney-at-law for collection litigation. Civ. Code § 1788.50(a). "Debt buyer" does not mean a person or entity that acquires a charged-off consumer debt incidental to the purchase of a portfolio predominantly consisting of consumer debt that has not been charged off. *Id.*

The record here appears to reflect that Plaintiff is a "debt buyer" within the meaning of Civil Code section 1788.61. Plaintiff's own allegations include that it is not the originator of the subject debt but purchased the account from the originator for purposes of collection. See Complaint filed March 21, 2016, ¶16.

Either way, it is evident that by any possible calculation, the time has long passed for Defendant to obtain relief under Code of Civil Procedure section 473.5. The Judgment was entered **more than eight years** before Defendant's motion was filed and served.

2. Defendant Fails to Establish that the Default Resulted from Mistake, Inadvertence, Surprise, or Excusable Neglect.

Defendant also seeks relief under Code of Civil Procedure section 473(b).

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

First, the evidence proffered by Defendant does not describe any specific mistake, inadvertence, surprise, or excusable neglect that led to the Default and/or Default Judgment. It simply asserts that no notice was received based on the service done. Therefore, there are no grounds for relief under Code of Civil Procedure section 473(b).

Even if grounds for relief under Code of Civil Procedure section 473(b) were shown, such relief is also barred by the passage of time.

Relief under Code of Civil Procedure section 473(b) must be brought within a reasonable time, but no later than six months after entry of the default judgment. Code Civ. Proc., § 473(b) (“Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”); see CJER, *California Judges Benchbook: Civil Proceedings—After Trial* (2024) (“CJER Civ. Pro.—After Trial”), § 1.16.

It is clear that Defendant knew of the Default Judgment as far back as 2018. The Court takes judicial notice of the Court’s own docket which reflects that Defendant filed a Claim of Exemption as to judgment enforcement proceedings on November 5, 2018. Defendant actually appeared in court on later judgment enforcement proceedings in 2024. At Defendant’s request, a garnishment was reduced at that time and the judgment obligation discussed in open court. See Minute Order dated March 21, 2024. Moreover, Plaintiff has proffered written correspondence from and to Defendant from 2018 showing Defendant was aware of the Default Judgment by 2018. See Opposition Declaration, ¶¶8-9 and **Exhibits A and B** thereof.

Defendant failed to act within a reasonable time to seek to set aside the Default Judgment.

3. Defendant Fails to Establish that the Default and Entry of Default Judgment Thereon Should be Set Aside as Void.

Even if the Court construes the relief requested by Defendant as being a request to vacate a judgment void for lack of service under Code of Civil Procedure section 473(d), the Court would not grant such relief at this stage.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure

section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In addition, a judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting their case. *In re Marriage of Park* (1980) 27 Cal.3d 337, 342. The grounds for such equitable relief are commonly stated as being extrinsic fraud or mistake. *Id.* Those terms are given a broad meaning and tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing. *Id.*; see also *Aldabe v. Aldabe* (1962) 209 Cal.App.2d 453, 474 (“Fraud or mistake is extrinsic when it deprives the unsuccessful party of an opportunity to present his case to the court.”) quoting *Westphal v. Westphal* (1942) 20 Cal.2d 393, 397. A party seeking relief under the court's equitable powers must satisfy the elements of a “stringent three-pronged test”: (1) a satisfactory excuse for not presenting a defense, (2) a meritorious defense, and (3) diligence in seeking to set aside the default. *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.

A motion to set aside a void default judgment may be filed at any time. See CJER Civ. Pro.—After Trial, § 1.82; see also *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 216.

Even if Defendant could somehow show service was not properly done back in 2018 or demonstrate other extrinsic factors prevented Defendant from presenting a defense, Defendant failed to act diligently to seek to set aside the Judgment by any reasonable measure.

As discussed above, despite knowing of the Default Judgment as far back as 2018, Defendant did not seek to prosecute this motion until 2025. In addition—and importantly—Defendant initiated multiple proceedings to challenge Plaintiff’s judgment collection efforts over the course of many years without seeking to set aside the Default Judgment. Setting aside the Default Judgment now would operate to the substantial prejudice of Plaintiff who, as the judgment creditor, was required to participate in and defend, repeatedly, against claims of exemption on a judgment which Defendant now seeks to have voided completely. Defendant’s neglect in challenging the Default Judgment under these circumstances was inexcusable. *In re Marriage of Park* (1980) 27 Cal.3d 337, 345 (“...a motion to vacate a judgment should not be granted where it is shown that the party requesting equitable relief has been guilty of inexcusable neglect or that laches should attach.”).

Disposition

The Court finds and orders as follows:

1. The Motion to Set Aside Default is DENIED.

2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: MSL17-01582
CASE NAME: THE BEST SERVICE CO VS APRIL A. APRESTO
***HEARING ON MOTION IN RE: FOR DEFAULT ON CONDITIONAL SETTLEMENT AGREEMENT AND**
STIPULATION FOR JUDGMENT
FILED BY: THE BEST SERVICE CO., INC.
TENTATIVE RULING:

Plaintiff The Best Service Co. Inc. ("Plaintiff") filed a Motion for Default on Conditional Settlement and Stipulation for Judgment on September 30, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on December 16, 2025.

Background

The parties entered into that certain settlement agreement filed September 6, 2017 (the "Settlement Agreement"), the terms of which included payment by the defendants April A. Apresto and Naiche R. Freeman ("Defendants") in the amount of \$8,316.74, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Christopher Vasquez filed September 30, 2025 as part of Motion to Enter Stipulated Judgment after Default ("Supporting Declaration"), ¶4 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default, in the foregoing principal amount (\$6,529.94) plus prejudgment interest (\$1,995.38), attorneys' fees (\$941.80) and costs (\$845.00), for a total of \$10,312.12. *Id.*, **Exhibit A**, ¶2.

Defendants defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶¶5-6. Defendants failed to cure after notice. *Id.* at ¶6 and **Exhibit B** thereto.

A total of \$6,040.00 in payments were made by Defendants. *Id.* at ¶5. After credit for amounts paid, there remains \$489.94* principal due and owing, plus the prejudgment interest of \$1,995.38, the attorneys' fees of \$941.80 and the costs of \$845.00, for a total judgment of **\$4,272.12**.

*Plaintiff's Supporting Declaration refers to a higher principal sum of \$1,598.94 and a total of \$4,536.12. *Id.* at ¶5. However, Plaintiff fails to adequately account for the calculation of these higher sums.

Analysis

Defendants were duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendants were duly served with the motion.